

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1218

By: West (Kevin)

AS INTRODUCED

An Act relating to definitions and general provisions; making legislative findings; defining term; making reference to certain statutory provisions; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Legislature finds that:

1. Antisemitism, including harassment on the basis of actual or perceived Jewish origin, ancestry, ethnicity, identity, affiliation, or faith, remains a persistent, pervasive, and disturbing problem in contemporary American society;

2. Jewish people continue to be a targeted minority in the United States. Data shows, for instance, that Jews are consistently the most likely of all religious groups to be victimized by incidents of hate, and that such incidents are increasing at an alarming rate;

1 3. State officials and institutions have a responsibility to
2 protect citizens from acts of hate and bigotry motivated by
3 discriminatory animus, including antisemitism, and must be given the
4 tools to do so;

5 4. Valid monitoring, informed analysis and investigation, and
6 effective policy-making all require uniform definitions;

7 5. While there can be no exhaustive definition of antisemitism,
8 as it can take many forms, the International Holocaust Remembrance
9 Alliance (IHRA) Working Definition has been an essential
10 definitional tool used to determine contemporary manifestations of
11 antisemitism, and includes useful examples of discriminatory anti-
12 Israel acts that cross the line into antisemitism;

13 6. The IHRA definition is used by various agencies of the
14 federal government, the majority of the United States, and the 33
15 governments that are members of IHRA; recommended for use by the
16 European Council and the European Parliament, endorsed by the UN
17 Secretary General and the Secretary General of the OAS, included in
18 policy guides prepared by the Organization for Security and
19 Cooperation in Europe, and formally adopted by a growing number of
20 European nations; and

21 7. Use of this definition of antisemitism, although it is not
22 to be taken as an exhaustive definition, will increase the awareness
23 and understanding of the parameters of contemporary anti-Jewish
24 discrimination in certain circumscribed areas.

1 SECTION 2. NEW LAW A new section of law to be codified in
2 the Oklahoma Statutes as Section 61 of Title 25, unless there is
3 created a duplication in numbering, reads as follows:

4 A. For purposes of this act, the term "antisemitism" has the
5 same meaning as provided for in the working definition of
6 antisemitism adopted by the International Holocaust Remembrance
7 Alliance (IHRA) on May 26, 2016, including the "contemporary
8 examples of antisemitism."

9 B. Nothing in this act shall be construed to diminish or
10 infringe upon any right protected under the First Amendment to the
11 United States Constitution, or the Oklahoma Constitution. Nothing
12 in this act shall be construed to conflict with local, federal or
13 state discrimination laws.

14 C. In reviewing, investigating, or deciding whether there has
15 been a violation of any policy, law, or regulation prohibiting
16 discriminatory acts under Sections 1101 through 1707 of Title 25 of
17 the Oklahoma Statutes or Section 850 of Title 21 of the Oklahoma
18 Statutes the state shall take into consideration the definition of
19 antisemitism set forth in subsection A of this section or purposes
20 of determining whether the alleged act was motivated by
21 discriminatory antisemitic intent.

22 D. Nothing in this act shall be construed to alter the
23 evidentiary requirements pursuant to which an agency or department
24 makes a determination that conduct, including harassment, amounts to

1 actionable discrimination, or to diminish or infringe upon the
2 rights protected under any other provision of law.

3 SECTION 3. This act shall become effective November 1, 2025.

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